

Court No. - 36

Case :- WRIT - C No. - 22700 of 2011

Petitioner :- Narendra Singh

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Awadhesh Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

On prayer made by Shri Ram Kumar Sharma, holding brief for Shri Pankaj Kumar Shukla, learned counsel appearing on behalf of the respondent Nos.2 and 3, the case is directed to be put up as fresh on 17th May, 2011 so as to enable Shri Shukla to obtain instructions in the matter particularly in regard to the following :

- (1) Whether the petitioner submitted any Objections against the Provisional Assessment ?
- (2) Whether the Objections, if any, submitted by the petitioner were decided by the concerned authority, and if so, copy of such Order ?
- (3) Whether the Order, if any, passed on the Objections of the petitioner against the Provisional Assessment was sent to the petitioner, and if so, mode of such Communication ?
- (4) Whether any Final Assessment Order was issued in respect of the petitioner, and if so, whether such Order was communicated to the petitioner, and if so, the mode of such Communication ?

Order Date :- 20.4.2011

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Hon'ble Satya Poot Mehrotra, J.

Hon'ble Mrs. Jayashree Tiwari, J.

We have heard Sri Awadhesh Kumar Mishra, learned counsel for the petitioner, the learned Standing Counsel appearing for the respondent no.1 and Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent nos.2 and 3.

It is submitted by Sri Awadhesh Kumar Mishra, learned counsel for the petitioner that the Demand Notice dated 21.3.2011 (Annexure-6 to the Writ Petition) has been issued to the petitioner on account of the alleged theft of electricity without complying with the requirements of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

By the order dated 20.4.2011, time was given to the learned counsel for the respondent nos.2 and 3 to obtain instructions in the matter.

Sri Pankaj Kumar Shukla, learned counsel for respondent nos.2 and 3 states that instructions have been received by him. Sri Shukla, as per the instructions, states that provisional assessment in respect of the petitioner was made on 14.12.2010, copy whereof has been filed as Annexure-5 to the Writ Petition. As no objections were filed by the petitioner against the provisional assessment, the same was treated to be final assessment and the Demand Notice dated 21.3.2011 (Annexure-6 to the Writ Petition) was issued to the petitioner.

On query made by the Court, Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent nos.2 and 3 has stated that no specific order of final assessment was issued in respect of the petitioner.

Sri Awadhesh Kumar Mishra, learned counsel for the petitioner submits that the petitioner has right to file appeal under Section 127 of the Electricity Act, 2003 against the final order made under Section 126 of the said Act. As no specific order of final assessment was made in the case of the petitioner, the petitioner has been deprived of his right to file appeal under Section 127 of the Electricity Act, 2003.

Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent nos.2 and 3 submits that as no objections were filed by the petitioner against the provisional assessment, the same was rightly treated to be final assessment, and no specific order of final assessment is required to be passed in such a case. He further submits that in case the objections were not filed by a person against the provisional assessment, he has no right to appeal under Section 127 of the Electricity Act, 2003.

In view of the submissions made, the matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent no.1 has been accepted by the learned Standing Counsel. Notice on behalf of the respondent nos.2 and 3 has been accepted by Sri Pankaj Kumar Shukla.

Counter affidavit on behalf of the respondents may be filed within six weeks. Rejoinder affidavit may be filed on behalf of the petitioner by the next date fixed in the matter.

List this case before the appropriate Bench on 28.7.2011.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is provided that till the next date fixed in the matter, recovery proceedings against the petitioner pursuant to the Demand Notice dated 21.03.2011 (Annexure-6 to the Writ Petition), will remain stayed provided the petitioner deposits Rs.1,25,000/- with the respondent no.3 within four weeks from today.

The deposit so made by the petitioner will be without prejudice to the rights and contentions of the parties involved in the present case.

In the event, the petitioner fails to deposit the amount as directed above, this interim order will stand automatically vacated.

Order Date :- 17.5.2011

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Respondent :- State Of U.P. And Others

Petitioner Counsel :- Awadhesh Kumar Mishra

Respondent Counsel :- C.S.C., Pankaj Kumar Shukla

Hon'ble Yatindra Singh, J.

Hon'ble Kashi Nath Pandey, J.

1. This writ petition is against the recovery proceeding for payment of electricity dues.
2. We have heard Counsel for the petitioner and the Standing Counsel and Sri Pankaj Kumar Shukla for the respondents.
3. In the circumstances of the case, the petitioner may file a representation before Executive Engineer, Vidyut Vitaran Nigam Garh Mukteshwar District Ghaziabad (Respondent no.3) within a month. It may be decided by concerned Executive Engineer by a speaking order, if possible, within a month from the date of receipt of the representation. The petitioner will file a certified copy of this order; other necessary documents and a duly stamped self-addressed envelope along with his representation. The concerned Executive Engineer after taking decision on the representation will communicate the same to the petitioner.
4. In case the petitioner deposits half of the disputed amount along with his representation before the respondent no.3, then the recovery proceeding shall remain in abeyance till disposal of his representation. The amount deposited by the petitioner in pursuance of this order may be adjusted while calculating final amount to be deposited.
5. With these observations, the writ petition is disposed of.

Order Date :- 28.7.2011

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